IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PINELLAS COUNTY, FLORIDA
CIVIL DIVISION

XYZ AI, INC., a Delaware corporation,

Plaintiff,

vs. **CASE NO.: 25-006213-CI-19**

SARAH BALDA, an individual,
SIMON DICKERMAN, an individual,
CALEB WORKMAN, an individual,
DAVID CORTES, an individual, and
HEN STUDIOS, LLC,
a Minnesota limited liability company,

Defendants.
_____/

ORDER GRANTING PLAINTIFF'S
VERIFIED MOTION FOR PRELIMINARY INJUNCTION

THIS CAUSE came before the Court at hearing on March 6, 2026, at 8:30 a.m. and May 20, 2026, at 1:30 p.m., upon the XYZ AI, Inc.'s (the "Plaintiff"), "Plaintiff's Verified Emergency Motion for Preliminary Injunction" (the "Injunction Motion") [Doc. 9], filed on November 10, 2025, pursuant to Florida Rule of Civil Procedure 1.610 and other applicable law.

The Court conducted an evidentiary hearing over two (2) days, received testimony and exhibits, considered counsels' arguments, reviewed the pleadings, and being otherwise fully advised in the premises, hereby finds and orders as follows:

I. FINDINGS OF FACT

A. The Parties

1. The Plaintiff is a Delaware corporation that develops and markets artificial intelligence software products, including its flagship product StealthGPT – an AI humanizer that

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allows users to bypass AI detection – as well as AI Detect, Rapid Resume, Eryn, and other similar products.

2. Defendant Simon Dickerman ("Dickerman") served as a consultant and subsequently as Chief Technology Officer of the Plaintiff. As a condition of his employment with the Plaintiff, Dickerman executed a Consulting Agreement (the "Consulting Agreement") and a Confidential Information and Invention Assignment Agreement with the Plaintiff (the "Dickerman NDA") (together, the "Dickerman Agreements") on September 20, 2023. [Plaintiff's Ex. 11 & 12].

3. Defendant Sarah Balda ("Balda") served as the creative director of Hen Studios, LLC ("Hen Studios") and subsequently as an employee of the Plaintiff. On February 24, 2025, Balda executed the Asset Purchase Agreement ("APA") on behalf of Hen Studios. [Plaintiff's Ex. 1]. On March 18, 2025, Balda executed the Intellectual Property Assignment Agreement ("IP Assignment") and the Bill of Sale ("Bill of Sale") on behalf of Hen Studios. [Plaintiff's Ex. 2 & 3]. Collectively, the APA, IP Assignment and Bill of Sale are referred to herein as the "Governing Documents." In addition, as a condition of her employment with the Plaintiff, Balda executed a Non-Disclosure Agreement (the "Balda NDA") on February 24, 2025. [Plaintiff's Ex. 34].

4. Defendant David Cortes ("Cortes") served a developer of the retro survival horror video game called "SSR Wives: Murder of My Winter Crush" ("SSR Wives") during his employment with the Plaintiff. As a condition of his employment with the Plaintiff, Cortes executed a Non-Disclosure Agreement with the Plaintiff (the "Cortes NDA") on December 27, 2024. [Plaintiff's Ex. 52].

5. Defendant Caleb Workman ("Workman") was employed by the Plaintiff in a marketing capacity. As a condition of his employment with the Plaintiff, Workman executed a

Non-Disclosure Agreement (the "Workman NDA") with the Plaintiff on April 26, 2025. [Plaintiff's Ex. 61].

6. Hen Studios is a Minnesota limited liability company organized on December 20, 2023.

B. SSR Wives Acquisition and the Governing Documents

7. In late 2024 to early 2025, Hen Studios became unable to continue financing the development of SSR Wives. Jozef Gherman ("Gherman"), the Chief Executive Officer of the Plaintiff, recognized the potential of the SSR Wives video game and offered financial support to Hen Studios in exchange for purchasing all of the intellectual property rights associated with SSR Wives (the "SSR IP").

8. This agreement was memorialized by the APA [Plaintiff's Ex. 1], the IP Assignment [Plaintiff's Ex. 2] and the Bill of Sale. [Plaintiff's Ex. 3].

a. Pursuant to the APA, the Plaintiff agreed to purchase the SSR IP in exchange for, among other things, taking over the payroll obligations of Hen Studios. [Plaintiff's Ex. 1].

b. Pursuant to the IP Assignment, Hen Studios irrevocably conveyed, transferred, and assigned to the Plaintiff all right, title, and interest in the SSR IP, including all trademarks, copyrights, source code, design documents, creative assets, technical data, marketing materials, and related goodwill. [Plaintiff's Ex. 2].

9. In exchange for funding the development of SSR Wives, the Plaintiff paid closing consideration, employed Balda and Cortes and took over the payroll, and agreed to fund further development. The Plaintiff also provided marketing, travel, equipment, and conference support.

10. Pursuant to the Governing Documents, the Plaintiff became the sole and exclusive owner of all intellectual property rights associated with SSR Wives, XYZ fulfilled all of its obligations under those agreements, and there is no ambiguity as to XYZ's ownership of the SSR IP.

11. On January 23, 2026, the United States Copyright Office issued Registration Number PAu 4-290-980, identifying the Plaintiff as the sole author and copyright claimant of SSR Wives, with a registration decision date of February 13, 2026. [Plaintiff's Ex. 75]. This federal registration constitutes prima facie evidence of the validity of the Plaintiff's copyright and of the facts stated in the certificate pursuant to 17 U.S.C. § 410(c).

C. The Non-Disclosure Agreements and Employment

12. The parties stipulated on the record that Dickerman, Balda, Cortes, and Workman (collectively, the "Individual Defendants") signed their respective agreements and that the signatures are authentic.

13. Plaintiff's Exhibits 13, 35, 53, and 62 establish that the Plaintiff paid the Individual Defendants as employees throughout their respective tenures, confirming the employment relationship and the Plaintiff's fulfillment of its obligations under the Governing Documents and the respective NDAs. [Plaintiff's Ex. 13, 35, 53, 62].

i. Dickerman: Employment, Consulting Agreement, and Confidentiality Agreement

14. The Dickerman NDA required Dickerman to maintain in strict confidence all non-public information obtained through his work for the Plaintiff. [Plaintiff's Ex. 12, ¶3(a)]. Such confidential information included technical data, trade secrets, know-how, research, product or service ideas or plans, software code, and marketing plans. [Plaintiff's Ex. 12, ¶3(b)]. The

Dickerman NDA also stipulates that upon termination, Dickerman would return all materials and documents belonging to the Plaintiff. [Plaintiff's Ex. 12, ¶5].

15. The Dickerman NDA also contains: (a) an assignment of all Company Inventions to the Plaintiff [Plaintiff's Ex. 12, ¶4]; (b) a non-solicitation provision prohibiting Dickerman from soliciting the Plaintiff's employees or consultants to terminate their relationship with the Plaintiff for twelve (12) months following termination [Plaintiff's Ex. 12, ¶8(a)-(b)]; and (c) a remedies provision acknowledging that violation of the agreement may cause the Plaintiff irreparable harm, entitling the Plaintiff to seek injunctive relief without the necessity of posting bond, or with a bond of no more than $1,000 [Plaintiff's Ex. 12, ¶12(f)].

16. The Consulting Agreement executed by Dickerman [Plaintiff's Ex. 11] designates Dickerman's relationship with the Plaintiff as that of an independent contractor and contains an Entire Agreement clause expressly superseding all prior or contemporaneous oral or written understandings between the parties [Plaintiff's Ex. 11, ¶11(b)].

17. Upon examination at the hearing, Dickerman testified that there is no signed written agreement between himself and Gherman regarding equity or ownership in the Plaintiff. Testimony of Gherman is consistent with this, establishing that the only executed agreements governing Dickerman's relationship with the Plaintiff are the Consulting Agreement and the Dickerman NDA. [Plaintiff's Ex. 11 & 12].

18. During his employment with the Plaintiff, Dickerman accessed significant confidential and proprietary information belonging exclusively to the Plaintiff.

ii. Balda, Workman, and Cortes: Employment and NDAs

19. The Balda, Workman, and Cortes NDAs (collectively, the "Employee NDAs") are substantively identical and generally require the respective Defendant to: (a) hold the Plaintiff's

confidential information in strict confidence; (b) use confidential information solely for the benefit of the Plaintiff; (c) not disclose confidential information to any unauthorized third party; and (d) upon termination, promptly return all devices, records, data, notes, documents, and other property belonging to the Plaintiff. [Plaintiff's Ex. 34, 52, & 61].

20. The Employee NDAs further provide that any violation or threatened violation causes irreparable harm and entitles the Plaintiff to injunctive relief without proving damages and without posting a bond. [Plaintiff's Ex. 34, 52, & 61].

21. The Plaintiff also purchased equipment for use by Cortes and Workman in connection with their employment, including: a Mac Mini desktop computer for Cortes [Plaintiff's Ex. 55], a computer monitor for Cortes [Plaintiff's Ex. 56], and a MacBook Air laptop, keyboard, and mouse for Workman [Plaintiff's Ex. 65], (collectively, the "XYZ Equipment"). The XYZ Equipment was used by the Individual Defendants to develop and market SSR Wives.

22. During their employment, all of the Individual Defendants were exposed to confidential and proprietary information belonging to the Plaintiff.

D. Termination of Defendants

23. In late September and early October 2025, Gherman discovered that the Defendants had orchestrated a coordinated plan to oust Gherman from his position as CEO, misappropriate the Plaintiff's intellectual property, exclude the Plaintiff from the continued development and eventual release of SSR Wives, and undermine the Plaintiff's business operations. [Plaintiff's Ex. 15, 16, & 67].

24. Plaintiff's Exhibit 15, a text message exchange between Dickerman and Workman on September 16, 2025, Plaintiff's Exhibit 67, a voice memorandum recorded by Workman following a meeting with Dickerman in or around late September 2025, and Plaintiff's Exhibit 16,

a text message exchange between Dickerman and Workman on October 1, 2025, collectively corroborate the coordinated nature of the plan. [Plaintiff's Ex. 15, 16, & 67]. Plaintiff's Exhibit 67 establishes a specific strategy to threaten a company-wide work stoppage to force either a restructuring of equity or a sale of the Plaintiff, and to oust Gherman from his position as CEO. [Plaintiff's Ex. 67]. Plaintiff's Exhibit 16, the texts between Dickerman and Workman, further corroborates this plan, in which Dickerman responded to Workman's proposal that employees refuse to work by stating "Not a bad idea. Let's scheme." [Plaintiff's Ex. 16].

25. On October 13, 2025, the Plaintiff terminated Dickerman's employment. [Plaintiff's Ex. 14].

26. On October 14, 2025, the Plaintiff terminated Balda's employment. [Plaintiff's Ex. 36].

27. On October 13, 2025, the Plaintiff terminated Workman's employment. [Plaintiff's Ex. 63].

28. On October 16, 2025, the Plaintiff terminated Cortes' employment. [Plaintiff's Ex. 54].

29. The parties stipulated on the record that all Individual Defendants received their termination letters.

E. Subsequent Breaches

30. Each termination letter demanded the prompt return of all SSR IP, confidential information, and XYZ Equipment in the respective Defendant's possession. Testimony of Gherman establishes that none of the Individual Defendants returned any SSR IP, XYZ Equipment, or other confidential materials belonging to the Plaintiff following their termination.

31. Following their terminations, the Individual Defendants publicly misrepresented their ownership of the SSR IP on social media platforms including Discord, X, and Reddit, claiming to be the sole proprietors of all SSR Wives assets, source code, and development authority. [Plaintiff's Ex. 69, 70, & 71].

32. Cortes testified under oath at the hearing that he retains all SSR IP source code on his personal computer, notwithstanding the Plaintiff's repeated demands for its return.

33. Plaintiff's Exhibits 76 and 78 establish that Cortes is actively developing a new video game, Sin Chronicles, whose main menu interface is substantially similar to that of SSR Wives, evidencing misuse of SSR IP belonging to the Plaintiff. The Sin Chronicles and SSR Wives main menus are nearly identical in structure, options, aesthetic, and character design. [Plaintiff's Ex. 76 & 78]. Gherman testified that there is not a shadow of a doubt that the menus are similar and the central character closely resembles the main character from SSR Wives.

34. Plaintiff's Exhibits 26 and 27, establishes that Dickerman shared confidential and proprietary information belonging to the Plaintiff with representatives of Ryne AI, a direct competitor of the Plaintiff, including screenshots of an internal tool known as the "Social Media Dashboard," which was developed exclusively for internal use by the Plaintiff. [Plaintiff's Ex. 26 & 27]. Gherman testified that Ryne is Plaintiff's most direct and fiercest competitor in the StealthGPT market, and the information shared was not publicly available. Upon cross-examination, Dickerman's testimony confirmed that he was sharing Plaintiff's confidential information with a competitor.

35. Plaintiff's Exhibit 31 establishes that Dickerman has used confidential information gained during his employment with the Plaintiff to begin development of a product called Stealthagent.io, which describes itself as an invisible AI assistant that humanizes essays to bypass

AI detection, and which directly competes with the Plaintiff's flagship product, StealthGPT. [Plaintiff's Ex. 31].

36. Plaintiff's Exhibits 18, 19, and 20 establish that between November 1 and 3, 2025, the Plaintiff received security alerts from its GitHub account [Plaintiff's Ex. 18], Vercel account [Plaintiff's Ex. 19], and Namecheap account [Plaintiff's Ex. 20], reflecting unauthorized attempts to alter account settings and initiate password resets for accounts belonging to the Plaintiff. Testimony of Gherman establishes that Dickerman made repeated unauthorized attempts to access the Plaintiff's online accounts and Gherman's personal accounts, and that these attempts continued into 2026. Dickerman's testimony demonstrated that he did in fact attempt to take control over these accounts.

37. On February 13, 2026, Dickerman and Cortes appeared at the private residence of two current employees of the Plaintiff and left a handwritten note, instructing the employees to among other language, "do the right thing." [Plaintiff's Ex. 73]. Testimony of Gherman establishes that this note was an attempt to solicit current employees to terminate their relationship with the Plaintiff in violation of Dickerman's non-solicitation obligations under the Dickerman NDA. [Plaintiff's Ex. 12, ¶8(a)].

F. Testimony Regarding Harm to the Plaintiff

38. Testimony of Gherman establishes that the SSR IP is unique, cannot be replicated or replaced, and constitutes a trade secret of the Plaintiff. Gherman testified that money damages would not be sufficient to make the Plaintiff whole, and that the Plaintiff's entire investment in SSR Wives goes to zero if the Defendants are permitted to continue their conduct.

39. Testimony of Gherman establishes that the Plaintiff has been unable to continue development of SSR Wives as a result of the Individual Defendants' retention of the SSR IP and

XYZ Equipment. The Plaintiff cannot develop, market, or release SSR Wives without the return of its own property, and any harm resulting from lost revenues, lost market opportunity, and reputational injury cannot be reversed by money damages.

40. Testimony of Gherman, corroborated by the exhibits, demonstrates that Defendants' public disclosures caused substantial reputational harm to the Plaintiff and created mass confusion in the market. [Plaintiff's Ex. 69, 70 & 71]. Gherman testified that Defendants have already ruined the reputation of SSR Wives, that this harm cannot be undone by money damages, and that the Sin Chronicles and SSR Wives main menus are nearly identical in structure, options, aesthetic, and character design, demonstrating ongoing misuse of the SSR IP. [Plaintiff's Ex. 69, 70, 71, 76, & 78]. The Niche Gamer article [Plaintiff's Ex. 69] published the dispute to the game's public audience, citing to a statement made by Cortes to the discord community. A Change.org petition [Plaintiff's Ex. 70] organized fan opposition based on Cortes' false ownership claims. A Reddit thread [Plaintiff's Ex. 71] generated 404 upvotes and 67 or more comments from fans who now believe the Plaintiff wrongfully took the game, because Defendants told them so. Gherman testified that this harm cannot be undone by money damages.

41. Testimony of Gherman establishes that Dickerman's disclosure of the Plaintiff's confidential information to Ryne AI, the Plaintiff's most direct and fiercest competitor in the StealthGPT market, permanently destroyed the secrecy that gave that information its independent economic value, and that this competitive harm cannot be restored through monetary relief. [Plaintiff's Ex. 26 & 27].

II. CONCLUSIONS OF LAW

42. Under Florida Rule of Civil Procedure 1.610 and other applicable law, in order to prevail on a motion for preliminary injunction, the movant must demonstrate: (1) irreparable harm

to the moving party unless the injunction issues; (2) unavailability of an adequate legal remedy; (3) a substantial likelihood of success on the merits; and (4) that the public interest is supported by the entry of the injunction. Joseph Spine, P.A. v. Moulton, 346 So. 3d 154, 158 (Fla. 2d DCA 2022) (quoting Atomic Tattoos, LLC v. Morgan, 45 So. 3d 63, 64–65 (Fla. 2d DCA 2010)); East, et. al. v. Aqua Gaming, Inc., 805 So.2d 932 (Fla. 2d DCA 2001).

43. Based upon the admitted evidence and relevant testimony, the Court finds that the Plaintiff has met its burden to establish all four (4) elements for a preliminary injunction.

44. As the Court noted on the record, Elements 1 and 2 are closely interrelated; there is a partial remedy at law, but not an adequate one, and that inadequacy ties directly into the finding of irreparable harm. The Court addresses each element in turn.

A. Element 1: Irreparable Harm

45. The Plaintiff has established the element of irreparable harm. "The question of whether the injury is 'irreparable' turns on whether there is an adequate legal remedy available." Surgery Ctr. Holdings, Inc. v. Guirguis, 318 So. 3d 1274, 1282 (Fla. 2d DCA 2021) (quoting Corp. Mgmt. Advisors, Inc. v. Boghos, 756 So. 2d 246, 247-48 (Fla. 5th DCA 2000)). Said differently, the harm is irreparable if an "injunction is the only practical mode of enforcement." Id. Notably, irreparable harm is presumed under Florida law when a party intends to appropriate trade secrets for its own use. Backjoy Orthotics, LLC v. Forvic Int'l Inc., 2015 WL 12915119, at *5 (M.D. Fla. July 28, 2015); Vas Aero Servs., LLC v. Arroyo, 860 F. Supp. 2d 1349, 1363 (S.D. Fla. 2012).

46. As established in Section I.F above, the SSR IP is unique, cannot be replicated or replaced, and constitutes a trade secret of the Plaintiff. [Findings of Fact, ¶34]. The Defendants are appropriating that confidential information for their own gain; Cortes testified under oath that he retains all SSR IP source code on his personal computer, and Dickerman confirmed on cross-

examination that he was sharing the Plaintiff's confidential information with a direct competitor. [Findings of Fact, ¶¶28, 30]. Irreparable harm is therefore presumed.

47. Independent of the presumption, the evidence establishes irreparable harm on multiple grounds:

a. The Individual Defendants' online statements, public misrepresentations, and disparaging comments have already caused significant and immediate harm to the Plaintiff's reputation and to the goodwill associated with SSR Wives. [Plaintiff's Ex. 69, 70, & 71]. By publicly claiming ownership of the SSR IP, releasing details of the dispute to the public, and using social media to cast the Plaintiff and its CEO in a negative light, the Individual Defendants have created confusion among the game's community and destroyed any anticipated value of the Plaintiff's investment in SSR Wives that would have been realized upon its release. Any harm to the Plaintiff resulting from lost revenues, lost market opportunity, or reputational injury cannot be reversed. [Findings of Fact, ¶¶35, 36].

b. Monetary damages would be difficult to determine because the number of sales lost, as well as any potential profit, would be nearly impossible to calculate, particularly with a continuing breach. See Atomic Tattoos, LLC v. Morgan, 45 So. 3d 63, 66 (Fla. 2d DCA 2010). If the game fails or is never released by the Plaintiff, the reputational harm cannot be remedied by money damages, as loss of reputation and goodwill is not easy to quantify and cannot readily be remedied with money damages or a post-trial injunction. See Uber Promotions, Inc. v. Uber Technologies, Inc., 162 F. Supp. 3d 1253, 1276 (N.D. Fla. 2016).

c. Moreover, irreparable harm is further established by Dickerman's disclosure of the Plaintiff's confidential and proprietary information to Ryne AI, a direct competitor, and his development of Stealthagent.io, which directly competes with the Plaintiff's flagship product StealthGPT. [Plaintiff's Ex. 26, 27, & 31]. The disclosure to Ryne AI permanently destroyed the secrecy that gave that information its independent economic value, which is a harm that cannot be restored through monetary relief. See Mapei Corp. v. J.M. Field Marketing, Inc., 295 So. 3d 1193, 1200 (Fla. 4th DCA 2020). Absent an injunction, Dickerman will continue misappropriating confidential information belonging to the Plaintiff in order to create and develop a competing product. [Findings of Fact, ¶¶37, 38].

48. Lastly, the parties contractually acknowledged that the harm resulting from these breaches is irreparable. The Employee NDAs expressly provide that any violation or threatened violation causes irreparable harm and entitles the Plaintiff to injunctive relief without proving damages and without posting a bond. [Plaintiff's Ex. 34, 52, & 61]. The Dickerman NDA similarly acknowledges that any violation may cause the Plaintiff irreparable harm, entitling the Plaintiff to seek injunctive relief without the necessity of posting bond. [Plaintiff's Ex. 12, ¶12(f)].

49. Accordingly, the Plaintiff has clearly demonstrated irreparable harm. The Court finds that an injunction is the only practical mode of enforcement given the nature and ongoing character of the Defendants' conduct, and that the Plaintiff has met its burden on Element 1.

B. Element 2: No Adequate Remedy at Law

50. The Plaintiff has established that no adequate remedy at law exists. An injunction is necessary where no adequate remedy at law exists to address the harms that have already occurred and those likely to continue. An injunction with respect to stolen business secrets is

authorized where it will eliminate the commercial advantage derived from the misappropriation. Hatfield v. AutoNation, Inc., 939 So. 2d 155, 157 (Fla. 4th DCA 2006).

51. As the Court noted on the record, there is a partial remedy at law, but not an adequate one, and that inadequacy ties directly into the finding of irreparable harm under Element 1. For the reasons set forth above, money damages alone cannot compensate the Plaintiff for the loss of control over its confidential information and trade secrets, cannot restore the Plaintiff's goodwill, cannot repair the reputational damage already caused by the Defendants' public misrepresentations [Plaintiff's Ex. 69, 70, & 71], and cannot stop the Defendants' ongoing attempts to access the Plaintiff's accounts and interfere with its business operations [Plaintiff's Ex. 18, 19, & 20].

52. The Plaintiff also cannot be made whole through post-hoc damages if the Defendants continue developing SSR Wives, release the game independently, or provide competitors with access to confidential tools or processes. [Plaintiff's Ex. 26, 27, & 31]. The Plaintiff also has no adequate remedy at law to stop the Defendants' ongoing attempts to access or interfere with the Plaintiff's business accounts and personal accounts belonging to the Plaintiff's CEO. [Plaintiff's Ex. 18, 19, & 20]. These actions create continuing risks to the Plaintiff's operations that cannot be remedied after the fact.

53. Accordingly, for the reasons set forth above and under Element 1, and as acknowledged by the parties in their respective agreements, the Plaintiff has established that no adequate remedy at law exists. The Court finds that the Plaintiff has met its burden on Element 2.

C. Element 3: Substantial Likelihood of Success on the Merits

54. The Plaintiff has established that it is likely to succeed on the merits. To prevail on a breach of contract claim, a plaintiff must show (a) a valid contract existed, (b) the defendant

materially breached the contract, and (c) the plaintiff suffered damages as a result of the defendant's breach. Synergy Contracting Grp., Inc. v. Fednat Ins. Co., 332 So.3d 62, 65 (Fla. 2d DCA 2021). Additionally, pursuant to Florida Statutes §688.003(1), misappropriation of trade secrets may be enjoined.

55. The Governing Documents are valid, executed contracts establishing the Plaintiff's ownership of the SSR IP. [Plaintiff's Ex. 1, 2, & 3]. The Plaintiff's ownership is further confirmed by Plaintiff's Exhibit 75, Registration Number PAu 4-290-980, which establishes prima facie evidence of the Plaintiff's copyright ownership as a matter of federal law pursuant to 17 U.S.C. § 410(c), and is self-authenticating pursuant to § 90.902(9), Florida Statutes.

56. The Employee NDAs and the Dickerman Agreements were stipulated to be signed and authentic. [Plaintiff's Ex. 11, 12, 34, 52, & 61]. The Dickerman Agreements and the Employee NDAs all impose clear obligations relating to confidentiality, use of the Plaintiff's proprietary information, and the return of all company property upon termination. The Plaintiff fulfilled all of its obligations under those agreements. [Plaintiff's Ex. 13, 35, 53, & 62]. Dickerman testified under oath that no signed written agreement exists regarding equity or ownership that supersedes the Dickerman Agreements, and the Consulting Agreement contains an Entire Agreement clause expressly superseding all prior or contemporaneous understandings between the parties. [Plaintiff's Ex. 11, ¶11(b)].

57. The Individual Defendants materially breached their respective NDAs and the Governing Documents in several independently sufficient ways. The Individual Defendants have failed to return the SSR IP and XYZ Equipment as demanded. [Plaintiff's Ex. 14, 36, 54, & 63]. Cortes testified under oath that the SSR Wives source code remains on his personal computer. The Individual Defendants have publicly claimed ownership over the SSR IP [Plaintiff's Ex. 69, 70, &

71], continued to develop SSR Wives and derivative works without authorization [Plaintiff's Ex. 76 & 78], disclosed confidential information and trade secrets to third parties including competitors [Plaintiff's Ex. 26 & 27], and made repeated unauthorized attempts to access the Plaintiff's accounts. [Plaintiff's Ex. 18, 19, & 20]. Dickerman has further used the Plaintiff's confidential information to develop a directly competing product. [Plaintiff's Ex. 31]. Dickerman appeared at the private residence of current employees in an attempt to solicit them to terminate their relationship with the Plaintiff in violation of his non-solicitation obligations. [Plaintiff's Ex. 73; Plaintiff's Ex. 12, ¶8(a)].

58. The disclosure of confidential information to Ryne AI and the development of Stealthagent.io not only violates the Dickerman NDA but constitutes misappropriation of trade secrets. The SSR IP, the Social Media Dashboard, and other confidential technical information constitute trade secrets within the meaning of Florida Statutes §688.002(4), as they derive independent economic value from not being generally known by others in the marketplace.

59. As a result of the breaches, the Plaintiff has suffered reputational injury, loss of goodwill, and loss of development control over SSR Wives. The Plaintiff has been deprived of the exclusive rights it bargained for under the contracts, including the right to control, develop, and commercialize the SSR IP. By misappropriating the SSR IP, claiming ownership over it, and continuing to use it for their own purposes, the Individual Defendants have dispossessed the Plaintiff of its interest in the SSR IP and any financial gain that could have resulted from developing the game on its own terms.

60. As a result of the foregoing, the Plaintiff is likely to succeed on the merits of its claim. The Court finds that the Plaintiff has met its burden on Element 3.

D. Element 4: Public Policy Considerations

61. The Plaintiff has established that injunctive relief would not contradict public policy. Florida law upholds the sanctity of binding contracts and discourages the unauthorized taking of another's property for one's own use. No evidence or argument was made that the requested injunction is against public policy. Florida defers to supporting the entry of injunctions when the elements are met. See Hatfield, 939 So. 2d at 158.

62. Accordingly, the public interest supports entry of the injunction. The Court finds that the Plaintiff has met its burden on Element 4.

Accordingly, it is **ORDERED** AND **ADJUDGED:**

1. The Plaintiff's Injunction Motion is **GRANTED**.

2. The Defendants, their officers, agents, servants, employees, and attorneys, and all persons acting in active concert or participation with them, are hereby prohibited from engaging in the following conduct, as defined as "Prohibited Conduct" in the Injunction Motion [Doc. 9]:

a. continuing to use the SSR IP to develop, launch, or promote SSR Wives;

b. using the SSR IP to develop any derivative game based upon or related to SSR Wives;

c. misappropriating SSR IP or any other property belonging to the Plaintiff;

d. modifying or altering any SSR IP or other property of the Plaintiff in their possession;

e. disclosing, proliferating, or disseminating the SSR IP, or any other intellectual property owned by the Plaintiff, to any other individual or entity;

f. representing to third parties or the public that they are the owners of the SSR IP;

g. infiltrating or exploiting online accounts and systems owned by the Plaintiff relating to its various business endeavors, including, but not limited to, Eryn, Aidetect, Rapid Resume, and StealthGPT, or attempting to do the same; and

h. contacting current employees or investors of the Plaintiff.

3. The Defendants are **ORDERED** to promptly return to the Plaintiff all of the Plaintiff's confidential, proprietary, and trade secret information in their possession, custody, or control within **10 days** of the entry of this Order.

4. The Defendants are **ORDERED** to immediately preserve and submit to forensic imaging all devices, media, or accounts in their possession or control that contain or may contain any SSR IP or other confidential information belonging to the Plaintiff within **20 days** from entry of this Order.

5. The Defendants are **ORDERED** to promptly return to the Plaintiff all XYZ Equipment within **10 days** from entry of this Order.

6. The Defendants are **ORDERED** to provide the Plaintiff with a complete list of any persons or entities with whom they have shared the Plaintiff's confidential information, with the exception of authorized Plaintiff personnel in connection with the Defendants' prior employment with the Plaintiff, within **10 days** from entry of this Order.

7. Based on stipulation of the parties, the bond for this injunction is set at **One Thousand Dollars ($1,000.00)** and shall be posted within **5 days** from entry of this Order.

8. This Court retains jurisdiction to enforce, clarify, or modify this Order, and to award such other relief as is necessary and appropriate.

DONE AND ORDERED at St. Petersburg, Pinellas County, Florida, this _____ day of May, 2026.

25-006213-CI 5/29/2026 10:12:32 AM
Circuit Judge Thomas Ramsberger
25-006213-CI 5/29/2026 10:12:32 AM

THOMAS RAMSBERGER
Circuit Judge

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